

IN THE HOUSE OF REPRESENTATIVES

HOUSE BILL NO. 860

BY WAYS AND MEANS COMMITTEE

AN ACT

RELATING TO THE IDAHO PARENTAL RIGHTS ACT; AMENDING SECTION 32-1010, IDAHO CODE, TO PROVIDE CORRECT CODE REFERENCES AND TO MAKE A TECHNICAL CORRECTION; AMENDING SECTION 32-1013, IDAHO CODE, TO ESTABLISH PROVISIONS REGARDING CIVIL ACTIONS AND TO MAKE A TECHNICAL CORRECTION; AMENDING SECTION 32-1015, IDAHO CODE, TO REVISE PROVISIONS REGARDING PARENTAL RIGHTS IN MEDICAL DECISION-MAKING; AMENDING SECTION 16-2424, IDAHO CODE, TO REVISE PROVISIONS REGARDING PROVISION OF TREATMENT; REPEALING SECTION 16-2428, IDAHO CODE, RELATING TO CONFIDENTIALITY AND DISCLOSURE OF INFORMATION; REPEALING CHAPTER 38, TITLE 39, IDAHO CODE, RELATING TO MINOR CONSENT TO TREATMENT; AMENDING SECTION 66-318, IDAHO CODE, TO REVISE PROVISIONS REGARDING AUTHORITY TO ADMIT VOLUNTARY PATIENTS AND DENIAL OF ADMISSION; AMENDING SECTION 66-320, IDAHO CODE, TO REVISE PROVISIONS REGARDING RIGHT TO RELEASE ON APPLICATION AND EXCEPTIONS; AND DECLARING AN EMERGENCY.

Be It Enacted by the Legislature of the State of Idaho:

SECTION 1. That Section 32-1010, Idaho Code, be, and the same is hereby amended to read as follows:

32-1010. IDAHO PARENTAL RIGHTS ACT. (1) This section through section ~~32-1014~~ 32-1015, Idaho Code, shall be known and may be cited as the "Idaho Parental Rights Act."

(2) The interests and role of parents in the care, custody and control of their children are both implicit in the concept of ordered liberty and deeply rooted in our nation's history and tradition. They are also among the unalienable rights retained by the people under the ninth amendment to the constitution of the United States.

(3) The interests of the parents include the high duty and right to nurture and direct their children's destiny, including their upbringing and education.

(4) The state of Idaho has independent authority to protect its parents' fundamental right to nurture and direct their children's destiny, upbringing and education.

(5) The protections and rights recognized in sections 32-1011 through ~~32-1014~~ 32-1015, Idaho Code, are rooted in the due process of law guaranteed pursuant to section 13, article I, of the constitution of the state of Idaho.

(6) Governmental efforts that restrict or interfere with these fundamental rights are only permitted if that restriction or interference satisfies the strict scrutiny standard provided in section 32-1013, Idaho Code.

(7) Nothing in this act shall be construed as altering the established presumption in favor of the constitutionality of statutes and regulations.

(8) The provisions of the Idaho parental rights act are hereby declared to be severable, and if any provision of the act or the application of such

1 provision to any person or circumstance is declared invalid for any reason,
 2 such declaration shall not affect the validity of the remaining portions of
 3 the act.

4 SECTION 2. That Section 32-1013, Idaho Code, be, and the same is hereby
 5 amended to read as follows:

6 32-1013. INTERFERENCE WITH FUNDAMENTAL PARENTAL RIGHTS RE-
 7 STRICTED. (1) Neither the state of Idaho, nor any political subdivision
 8 thereof, may violate a parent's fundamental and established rights pro-
 9 tected by this act, and any restriction of or interference with such rights
 10 shall not be upheld unless it demonstrates by clear and convincing evidence
 11 that the restriction or interference is both:

12 (a) Essential to further a compelling governmental interest; and

13 (b) The least restrictive means available for the furthering of that
 14 compelling governmental interest.

15 (2) The foregoing principles apply to any interference whether now ex-
 16 isting or hereafter enacted.

17 (3) Nothing in this act shall be construed as invalidating the provi-
 18 sions of the child protective act in chapter 16, title 16, Idaho Code, or
 19 ~~modify~~ modifying the burden of proof at any stage of proceedings under the
 20 child protective act.

21 (4) When a parent's fundamental rights protected by this act are vio-
 22 lated, a parent may assert that violation as a claim or defense in a judicial
 23 proceeding and may obtain appropriate relief against the governmental en-
 24 tity.

25 (5) If a parent prevails in a civil action against the state, or a polit-
 26 ical subdivision thereof, as provided in subsection (4) of this section, the
 27 parent is entitled to reasonable attorney's fees and costs.

28 (6) All civil actions brought pursuant to sections 32-1010 through
 29 32-1015, Idaho Code, shall be initiated within two (2) years after the harm
 30 occurred or two (2) years after the discovery, by the parent, of the facts
 31 constituting the claim, whichever is later.

32 SECTION 3. That Section 32-1015, Idaho Code, be, and the same is hereby
 33 amended to read as follows:

34 32-1015. PARENTAL RIGHTS IN MEDICAL DECISION-MAKING. (1) As used in
 35 this section:

36 (a) "Governmental entity" means the state and its political subdivi-
 37 sions.

38 (b) "Health care provider" means:

39 (i) A physician, health care practitioner, or other individ-
 40 ual licensed, accredited, or certified to perform health care
 41 services or provide counseling consistent with state law, or any
 42 agent or third-party representative thereof; or

43 (ii) A health care facility or its agent.

44 (c) "Health care service" means a service for the diagnosis, screening,
 45 examination, prevention, treatment, cure, care, or relief of any physi-
 46 cal or mental health condition, illness, injury, defect, or disease.

(d) "Health information" means information or data, collected or recorded in any form or medium, and personal facts of information about events or relationships that relates to:

- (i) The past, present, or future physical, mental, or behavioral health or condition of an individual or member of the individual's family;
- (ii) The provision of health care services to an individual; or
- (iii) Payment for the provision of health care services to an individual.

(e) "Minor child" means an individual under eighteen (18) years of age but does not include an individual who is an emancipated minor.

(f) "Parent" means a biological parent of a child, an adoptive parent of a child, or an individual who has been granted exclusive right and authority over the welfare of a child under state law.

(2) Parents who have legal custody of any minor child have the fundamental right and duty to make decisions concerning the furnishing of health care services to the minor child.

(3) Except as otherwise provided by this section or court order, an individual, health care provider, or governmental entity shall not furnish a health care service or solicit to furnish a health care service to a minor child without obtaining the ~~prior~~ informed consent of the minor child's parent. When interpreting this subsection:

(a) No individual acting reasonably under the circumstances shall be found in violation of this subsection by furnishing nonemergency first aid services and care to a minor child appearing or represented to be sick or injured. Such services and care may include dressing minor wounds, applying topical agents, providing fluids or ice, and performing checks to identify minor illnesses; and

(b) This subsection shall not be construed to invalidate any protections or immunities granted to any individual administering first aid services and care pursuant to any provision of Idaho Code.

(4) Subsection (3) of this section shall not apply, and a health care provider may authorize or furnish a health care service without obtaining the informed consent of the minor child's parent, if:

(a) (i) A parent of the minor child has given blanket consent authorizing the health care provider to furnish the health care service; or, provided that:

1. Such consent must be in writing on a form provided by the health care provider. The form shall be titled "Blanket Consent Form for Health Care Services for Minor." The title must be in bold, 30-point font. On the first page, the form shall state in bold, 24-point font: "Providing blanket consent is optional and may, instead, be given on a case-by-case basis. Blanket consent may be withdrawn by a parent at any time.";

2. No parent shall be required or pressured to sign a blanket consent form as a condition of the minor child enrolling in public school or participating in any school-sponsored activity; and

3. A parent may revoke consent to furnish any further health care service to a minor child at any time.

(ii) A blanket consent written by a parent or guardian for the child shall be valid if signed by the parent or guardian even though it does not meet the requirements of paragraph (a) (i) of this subsection.

(b) The health care provider reasonably determines that a medical emergency exists and:

(i) Furnishing the health care service is necessary in order to prevent death or imminent, irreparable physical injury address a serious bodily harm to the minor child; or

(ii) After a reasonably diligent effort, the health care provider cannot locate or contact a parent of the minor child and the ~~minor child's life or health would be seriously endangered by further delay in the furnishing of health care services.~~ health care service is furnished to prevent loss of life or serious physical illness or injury to the minor child;

(c) A minor child is seeking health care or medical treatment authorized by paragraph (b) of this subsection that is directly related to an allegation of a crime against the minor child or to collect evidence related to such crime when the collection of such evidence is time-sensitive;

(d) The service is limited to nonemergency first aid services and care to a minor appearing or represented to be sick or injured;

(e) A minor child utilizes the 988 Idaho crisis and suicide hotline and receives immediate crisis and suicide prevention services. If the Idaho crisis and suicide hotline determines that the minor child is experiencing suicidal ideation, it may offer and conduct a follow-up call within forty-eight (48) hours solely for the purposes of reassessing safety, reviewing the safety plan, and encouraging communication with the child's parent or guardian; or

(f) The health care provider is furnishing the health care service for the purpose of detecting or diagnosing pregnancy or providing prenatal or peripartum care, which shall not include abortion or performing or facilitating an abortion as that term is defined in section 18-8702, Idaho Code.

(5) No health care provider or governmental entity shall deny a minor child's parent access to health information that is:

(a) In such health care provider's or governmental entity's control; and

(b) Requested by the minor child's parent.

(6) Subsection (5) of this section shall not apply if:

~~(a) Parent's~~ The parent's access to the requested health information is prohibited by a court order; ~~or~~

(b) The health information is a record that relates to physical abuse, abandonment, or neglect by the parent, as provided in section 33-6001(3), Idaho Code; or

~~(b) (c)~~ The parent is a subject of an investigation related to a crime committed against the child, and a law enforcement officer requests that the information not be released to the parent.

1 (7) This section shall be construed in favor of a broad protection of
 2 parents' fundamental right to make decisions concerning the furnishing of
 3 health care services to minor children.

4 (8) This section does not make legal and in no way condones any abuse,
 5 abandonment, or neglect, including any act or omission described in section
 6 16-1602, Idaho Code.

7 (9) This section does not make legal and in no way condones euthanasia,
 8 mercy killing, or assisted suicide, or permit an affirmative or deliberate
 9 act or omission to end life, including any act or omission described in sec-
 10 tion 18-4017, Idaho Code, other than to allow the natural process of dying.

11 (10) If a minor child does not have an affirmative right of access to a
 12 specific treatment, service, or procedure, this section shall not be con-
 13 strued to grant the parent a right to access such treatment, service, or pro-
 14 cedure.

15 (11) This section shall not be construed to prohibit a court from issu-
 16 ing an order that is otherwise permitted by law.

17 (12) (a) Subject to the limitations of chapter 9, title 6, Idaho Code,
 18 any parent who is deprived of a right as a result of a violation of this
 19 section shall have a private right of action against the individual,
 20 health care provider, or governmental entity.

21 (b) A parent may raise this section as a defense in any judicial or
 22 administrative proceeding without regard to whether the proceeding is
 23 brought by or in the name of the state, any private person, or any other
 24 party.

25 (c) A parent who successfully asserts a claim or defense under this sec-
 26 tion may recover declaratory relief, injunctive relief, compensatory
 27 damages, reasonable attorney's fees, and any other relief available un-
 28 der law.

29 ~~(d) All civil actions shall be initiated within two (2) years after the~~
 30 ~~harm occurred.~~

31 SECTION 4. That Section 16-2424, Idaho Code, be, and the same is hereby
 32 amended to read as follows:

33 16-2424. PROVISION OF TREATMENT. (1) Every child subject to an invol-
 34 untary treatment order under this chapter shall be provided with appropri-
 35 ate treatment in accordance with the least restrictive alternative princi-
 36 ple that offers him a realistic prospect of improvement. Children shall be
 37 afforded treatment in facilities that conform to the applicable rules of the
 38 department, and that are able to adequately care for and treat the persons
 39 they serve.

40 (2) A written individual treatment plan shall be prepared, with the
 41 participation of the parents, the child (to the extent he is able), his family
 42 and any other persons of his such parents' choice, during voluntary admis-
 43 sion or emergency psychiatric evaluation or, within seven (7) days of the
 44 signing of an order for involuntary treatment. The individual treatment
 45 plan shall be approved by the responsible physician, and the course of treat-
 46 ment actually administered shall conform to the plan.

47 (3) The child's progress in attaining the objectives in the treatment
 48 plan shall be noted in his records, and the revisions to the plan shall be
 49 made as necessary. The child and the child's parent, custodian, or guardian

1 shall be afforded an opportunity to participate in any substantial revision
2 of the treatment plan.

3 (4) A copy of the individual treatment plan shall be given to the child,
4 his parents and to any other person designated by him such parents, provided
5 that the responsible physician may preclude disclosure of the individual
6 treatment plan to the child if he states in writing why disclosure would be
7 harmful to the child.

8 SECTION 5. That Section 16-2428, Idaho Code, be, and the same is hereby
9 repealed.

10 SECTION 6. That Chapter 38, Title 39, Idaho Code, be, and the same is
11 hereby repealed.

12 SECTION 7. That Section 66-318, Idaho Code, be, and the same is hereby
13 amended to read as follows:

14 66-318. AUTHORITY TO ADMIT VOLUNTARY PATIENTS -- DENIAL OF ADMIS-
15 SION. (1) The director of any facility or a practitioner granted admitting
16 privileges pursuant to chapter 13, title 39, Idaho Code, may admit as a
17 voluntary patient the following persons for observation, diagnosis, evalua-
18 tion, care or treatment of mental illness:

19 (a) Any person who is eighteen (18) years of age or older;

20 ~~(b) Any individual fourteen (14) to eighteen (18) years of age who may~~
21 ~~apply to be admitted for observation, diagnosis, evaluation, care or~~
22 ~~treatment and the facility director will notify the parent, parents or~~
23 ~~guardian of the individual of the admission; a parent or guardian may~~
24 ~~apply for the individual's release and the facility director will re-~~
25 ~~lease the patient within three (3) days, excluding Saturdays, Sundays~~
26 ~~and legal holidays, of the application for discharge, unless the time~~
27 ~~period for diagnosis, evaluation, care or treatment is extended pur-~~
28 ~~suant to section 66-320, Idaho Code;~~

29 ~~(c) (b)~~ Any emancipated minor;

30 ~~(d) (c)~~ Any individual under ~~fourteen (14)~~ eighteen (18) years of age
31 upon application of the individual's parent or guardian;

32 ~~(e) (d)~~ Any individual who lacks capacity to make informed decisions
33 about treatment upon application of the individual's guardian; or

34 ~~(f) (e)~~ Any individual confined for examination pursuant to section
35 18-211, Idaho Code.

36 (2) The director of any facility or a practitioner granted admitting
37 privileges pursuant to chapter 13, title 39, Idaho Code, must refuse admis-
38 sion to any applicant under this section whenever:

39 (a) The applicant is determined not to be in need of observation, diag-
40 nosis, evaluation, care or treatment at the facility;

41 (b) The applicant is determined to lack capacity to make informed deci-
42 sions about treatment unless the application is made by a guardian with
43 authority to consent to treatment; or

44 (c) The applicant's welfare or the welfare of society, or both, are bet-
45 ter protected by the provisions of section 66-329, Idaho Code.

1 SECTION 8. That Section 66-320, Idaho Code, be, and the same is hereby
2 amended to read as follows:

3 66-320. RIGHT TO RELEASE ON APPLICATION -- EXCEPTIONS. (1) A volun-
4 tary patient admitted in accordance with the procedure outlined in section
5 66-318, Idaho Code, who requests his release or whose release is requested,
6 in writing, by his ~~legal guardian, parent,~~ spouse, or adult next of kin shall
7 be released except that:

8 (a) If the patient was admitted on his own application and the request
9 for release is made by a person other than the patient, release may be
10 conditioned upon the agreement of the patient thereto;

11 ~~(b) If the patient, by reason of his age, was admitted on the applica-~~
12 ~~tion of another person, his release prior to becoming sixteen (16) years~~
13 ~~of age may be conditioned upon the consent of his parent or guardian; or~~

14 (b) Any patient under eighteen (18) years of age must be released with
15 the consent of the patient's parent or guardian; or

16 (c) If the director of the facility determines that the patient should
17 be hospitalized under the provisions of this chapter, the patient may be
18 detained up to three (3) days, excluding Saturdays, Sundays and legal
19 holidays, for the purpose of examination by a designated examiner and
20 the filing of an application for continued care and treatment.

21 (2) Notwithstanding any other provision of this chapter, judicial pro-
22 ceedings authorized by this chapter shall not be commenced with respect to
23 a voluntary patient unless release of the patient has been requested by him-
24 self or the individual who applied for his admission.

25 (3) The date and time of any request for release under this section
26 shall be entered in the patient's clinical record. If the request for
27 release is denied, the reasons for denial also shall be entered in the pa-
28 tient's clinical record.

29 (4) A patient admitted for examination pursuant to section 18-211,
30 Idaho Code, may not be released except for purposes of transportation back to
31 the court ordering, or party authorizing, the examination.

32 SECTION 9. An emergency existing therefor, which emergency is hereby
33 declared to exist, this act shall be in full force and effect on and after its
34 passage and approval.